

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 859

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY; AMENDING CHAPTER 7, TITLE 32, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 32-717F, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING RESTORATION OF LOST PARENTING TIME; AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 7, Title 32, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 32-717F, Idaho Code, and to read as follows:

32-717F. RESTORATION OF LOST PARENTING TIME. (1) If a parent's custody is restricted, suspended, or supervised due to an allegation of abuse that is adjudicated by the court and found to be unsubstantiated or insufficient to meet the clear and convincing evidence standard, the court shall order restoration of the lost parenting time. Willful interference with a restoration order shall result in enforceable remedies, including contempt and compensatory parenting time, and the court shall refer apparent violations of title 18, Idaho Code, relating to custody interference to the appropriate prosecuting attorney.

(2) A restoration plan shall provide for prompt recovery of equivalent parenting time in a manner that minimizes disruption to the child and preserves stability and continuity, including comparable time for missed holidays, school breaks, or special periods.

(3) Restoration of lost parenting time shall occur without undue delay. When a parent knowingly denies court-ordered custody or parenting time without lawful justification, the court shall award compensatory parenting time equal in type and duration to the time denied. Such compensatory parenting time shall be exercised as soon as reasonably practicable, unless clear and convincing evidence establishes that immediate restoration would pose a risk of substantial harm to the child.

(4) For the purposes of this section, "restoration plan" means a written plan or schedule that sets forth the timing, conditions, and process for the restoration or progression of a parent's custody or parenting time to a parent's lawful entitlement under the default custody framework established by law or an otherwise lawful final custody order.

SECTION 2. This act shall be in full force and effect on and after January 1, 2027.